

Amendment No. 1 to HB2408

Vaughan  
Signature of Sponsor

**AMEND Senate Bill No. 2659\***

**House Bill No. 2408**

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 65, Chapter 4, Part 4, is amended by adding the following as a new section:

**65-4-411.**

(a)

(1) A person or entity that makes telephone solicitations using an automated telephone dialing system to deliver artificial or prerecorded voice messages to residential subscribers in this state shall maintain a record of the number of such telephone solicitations made each month.

(2) Beginning October 1, 2026, a person or entity that makes no less than five hundred (500) telephone solicitations per month, as described in subdivision (a)(1), shall provide copies of the records required by subdivision (a)(1) to the commission no less than once every six (6) months.

(3) In addition to the requirement of subdivision (a)(2), a person or entity described in subdivision (a)(2) shall provide copies of the records required by subdivision (a)(1) upon request by the commission or the attorney general and reporter.

(4) A person or entity that fails to comply with subdivision (a)(1), (a)(2), or (a)(3) is subject to the penalties provided in this part.

(b) Notwithstanding this part or another law to the contrary, a person or entity shall not make more than ten thousand (10,000) telephone solicitations per month using

an automated telephone dialing system to deliver artificial or prerecorded voice messages to residential subscribers in this state.

(c)

(1) A violation of subsection (b) is an unfair or deceptive act or practice affecting trade or commerce for purposes of the Tennessee Consumer Protection Act of 1977, compiled in title 47, chapter 18, part 1, and is subject to the penalties and remedies provided in that act, in addition to the penalties provided in this part.

(2) Notwithstanding another law to the contrary, a court that finds that a person or entity violated subsection (b) shall impose a civil penalty of no less than one thousand dollars (\$1,000) per violation.

SECTION 2. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding the following as a new subdivision:

( ) Violating § 65-4-411(b).

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to conduct occurring on or after that date.